

U.P. Government Degree Colleges Contractually Working Lecturers Regularisation Rules, 2016

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State of Uttar Pradesh - Act

U.P. Government Degree Colleges Contractually Working Lecturers Regularisation Rules, 2016

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U.P. Government Degree Colleges Contractually Working Lecturers Regularisation Rules, 2016

Rule

U-P-GOVERNMENT-DEGREE-COLLEGES-CONTRACTUALLY-WORKING-LECTURERS-REGULARISATION-RULES-2016 of 2016

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U.P. Government Degree Colleges Contractually Working Lecturers Regularisation Rules, 2016

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No. 718/70-5-2016-30-2012, dated 12.4.2016, published in the U.P. Gazette, Extraordinary, Part 4, Section (Ka), dated 12.4.2016, pp. 3-5. - In exercise of the powers conferred by the proviso to Article 309 of the Constitution, the Governor is pleased to make the following rules for regularisation of Contractual Lecturers working in Government Degree Colleges of the State.

1.

Short title, commencement and applicability.

(1)

These rules shall be called the Uttar Pradesh Government Degree Colleges Contractually Working Lecturers Regularisation Rules, 2016.

(2)

They shall come into force at once.

2.

Overriding effect.

- These rules shall have effect, notwithstanding anything to the contrary contained in any other rules made by the Governor under the proviso to Article 309 of the Constitution, or any orders.

3.

Definitions.

- Unless there is anything repugnant in the subject or context, -

(a)

"Appointing Authority" means the Governor;

(b)

"Constitution" means the Constitution of India;

(c)

"Governor" means the Governor of Uttar Pradesh;

(d)

"Government" means the State Government of Uttar Pradesh;

(e)

"Contractual Lecturer" means a person contractually working as Lecturer in Government Degree Colleges of the State.

4.

Conditions/terms for regularisation of Contractual Lecturer.

- Under these rules, a Contractual Lecturer, working in Government Degree Colleges of the State, shall be eligible for regularization -

(1)

If he holds/fulfils the educational qualification for the post of lecturer as mentioned in the Uttar Pradesh Higher Education (Group A) Service Rules, 1985, as amended from time to time and has put in at least five years service as Contractual Lecturer in a Government Degree College on the date of regularisation but not appointed after December 31, 2008;

(2)

If he has been appointed against a regular vacancy/sanctioned post at the time of appointment as referred to in sub-rule (1) above and fulfil the educational and other qualifications and age limit conditions prescribed in the prevalent service rules; and

(3)

For regularisation where of the post should be sanctioned and vacant on the date of regularisation under these rules.

5.

Selection Committee for regularisation.

- For the purpose of regularisation a three member Selection Committee under the Chairmanship of departmental Principal Secretary/Secretary shall be constituted by the Appointing Authority. A representative of Personnel Department of the Government, not below the rank of Joint Secretary, shall be the member of this Selection Committee. In case, any of the officers included in the committee does not belong to Scheduled Castes or Scheduled Tribes or Other Backward Classes, one officer belonging to such categories shall be additionally nominated as the member of the Selection Committee.

6.

Procedure for regularisation.

(1)

The appointing authority shall prepare a provisional joint eligibility list of Contractual Lecturers, in order of seniority as determined according to the date of their appointment on contract, and who fulfil the conditions of Rule 4 above in

respect of each post. If two or more Contractual Lecturers are appointed together, the provisional joint eligibility list shall be prepared in the order in which their names are mentioned in the order of their appointment, and if two or more Contractual Lecturers are appointed on the same date and in the same category their order in the list shall be determined in order of their seniority in age.

(2)

The provisional joint eligibility list prepared under sub-rule (1) above shall be circulated by the appointing authority among the listed Contractual Lecturers and the same shall be displayed on the departmental website, if any and shall invite objections from Contractual Lecturers within fifteen days. The objections so received shall be disposed of within one week and thereafter a final joint eligibility list shall be issued.

(3)

The final eligibility list prepared as per sub-rule (2), shall be placed before the Selection Committee along with their relevant records as required for the determination of the suitability of the Contractual Lecturers. The Selection Committee shall consider the suitability of the Contractual Lecturers on the basis of records placed before the Committee.

(4)

Under these rules a Contractual Lecturer shall be regularised against the post of same (reserved/unreserved) category/class to which he belongs, subject to the extent of availability of posts in the concerned (reserved/unreserved) category/class:

Provided that if there is a vacancy of reserved category and no eligible person of such reserved category is available for regularisation against such vacancy then no Contractual Lecturer of any order reserved/unreserved category shall be regularised against such vacancy and the same shall be filled from amongst the person of concerned reserved category through regular selection.

(5)

The Selection Committee shall prepare a list of suitable selected candidates for regularisation. The names in the said list shall be arranged in order of seniority as determine in the joint eligibility list.

7.

Relaxation in age limit.

- The eligible Contractual Lecturers selected for regularisation as per Rule 6 above, shall be provided relaxation from the condition of upper age limit, as prescribed in the service rules for the relevant post, for such period as is necessary up to the date of regulation.

8.

Appointment.

- Subject to the provisions of Rule 6, the appointing authority shall issue the orders of regularisation of Contractual Lecturers in the same order in which their names have been arranged in the list prepared under sub-rule (5) of Rule 6. The Contractual Lecturer shall be deemed to have been substantively appointed on the post on the date of which the order of regularisation has been issued, and not from any previous date.

9.

Validity of appointment.

- Appointments made through regularisation under these rules, shall be deemed to have been made under relevant service rules or orders, if any.

10.

Seniority.

(1)

A Contractual Lecturer regularised under these rules shall be entitled to seniority against the cadre/post only from the date of his substantive appointment after selection as per these rules. The seniority of such Contractual Lecturers against the cadre/post concerned shall be determined below the Lecturers appointed as per prescribed procedure or relevant service rules till the date of issuance of order of regularisation.

(2)

The inter-se seniority of Contractual Lecturers regularised under these rules, shall be in accordance with the seniority mentioned in final joint eligibility list prepared under sub-rule (2) of Rule 6.

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